



CHAPTER cxliii.

An Act to confer additional powers upon the Midland Railway Company and upon the Midland and North Eastern Railway Companies Committee and upon the Midland and Great Northern Railways Joint Committee for the construction of works and the acquisition of lands to empower the Midland Railway Company to subscribe towards the undertaking of the Yorkshire Dales Railway Company and for other purposes. [30th July 1900.]

A.D. 1900.

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to construct the railway widenings of railways and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use additional lands for the purposes of this Act and for extending their station siding warehouse coal wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking :

And whereas it is expedient that the Midland and North Eastern Railway Companies Committee (in this Act called "the Midland and North Eastern Committee") should be empowered to acquire the lands in this Act mentioned in that behalf :

And whereas it is expedient that the Midland and Great Northern Railways Joint Committee (in this Act called "the Midland and Great Northern Committee") should be empowered to acquire the lands in this Act mentioned in that behalf :

And whereas plans and sections showing the lines and levels of the railway widenings and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties within which the said railway widenings and other works

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will be made or are situate and the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the time now limited by the Midland Railway Act 1895 for the construction of and by the Midland Railway Act 1898 for the compulsory purchase of lands for the Dore and Sheffield widening authorised by the Midland Railway Act 1892 should be extended as provided by this Act :

And whereas it is expedient that further powers should be conferred upon the Company with respect to the sale or other disposal of lands acquired by them which are not or eventually may not be required for the purposes of their undertaking :

And whereas it is expedient that the Company should be empowered to subscribe or contribute capital towards the construction of the railways authorised by the Yorkshire Dales Railway (Skipton to Grassington) Act 1897 and to lend money on mortgage to or take debenture stock of the Yorkshire Dales Railway Company (in this Act called "the Yorkshire Dales Company") :

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of the railways and other works by this Act authorised and for other purposes of this Act and also for the making and enlargement of stations sidings warehouses engine sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of the traffic on their railways and for completing the purchase of lands and buildings for any of the above-mentioned purposes and for providing additional plant and rolling stock block and interlocking signals and for the general purposes of their undertaking :

And whereas it is expedient that the North Eastern Railway Company and the Great Northern Railway Company and the several Committees herein-before mentioned respectively should be empowered to apply their funds to the purposes of this Act in which they are respectively interested :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and

Commons in this present Parliament assembled and by the authority A.D. 1900.
of the same as follows :—

1. This Act may be cited for all purposes as the Midland Railway Short title.
Act 1900.

2. The following Acts and parts of Acts are except where Incorporation
expressly varied by this Act incorporated with and form part of this of
Act (that is to say) :— general Acts.

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

Part I. (relating to the construction of a railway) and Part II.
(relating to extension of time) of the Railways Clauses Act.
1863 :

The provisions of the Companies Clauses Consolidation Act 1845
with respect to the following matters namely :—

The transfer or transmission of shares ;

The borrowing of money by the Company on mortgage or
bond ;

The conversion of borrowed money into capital :

And Part II. (relating to additional capital) and Part III. (relating
to debenture stock) of the Companies Clauses Act 1863 as
amended by subsequent Acts.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorporated
herewith have the same respective meanings unless there be something
in the subject or context repugnant to such construction :

The expression " the railway " means the new railway by this Act
authorised :

The expression " the widenings " means the widenings of railways
by this Act authorised :

The expressions " parish clerks " and " clerks of the several
parishes " in sections 7, 8 and 9 of the Railways Clauses Con-
solidation Act 1845 shall as regards the administrative county of
London mean the clerks of the sanitary authorities appointed by
section 99 of the Public Health (London) Act 1891 for the execution
of that Act.

4. The provisions of sections 18 to 23 of the Railways Clauses Protection
Consolidation Act 1845 shall for the purposes of this Act extend of gas and
and apply to the water and gas mains pipes and apparatus of any water mains
local authority and shall be construed as if " local authority " of local
were mentioned in those sections in addition to " company or authorities.
society " Provided that any penalties recovered under section 23
shall be appropriated to that fund of the local authority to which

A.D. 1900. — their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
Company to
make
railway &c.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections thereof respectively the new railway and widenings of railways and road herein-after described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto respectively as may be required for those purposes.

The railway and widenings road and works herein-before referred to and authorised by this Act to be made by the Company are—

(Dewsbury
Goods
Branch.)

A railway (to be called “the Dewsbury Goods Branch”) five furlongs in length wholly situate in the parish and urban district of Thornhill in the west riding of the county of York commencing by a junction with Railway No. 4 authorised by the Midland Railway (West Riding Lines) Act 1898 and terminating at a point at or near the west side of Savile Road $8\frac{1}{2}$ chains or thereabouts measuring in a southerly direction from the centre of the bridge carrying that road over the River Calder And in connexion with the said railway a new road commencing in the said parish and urban district of Thornhill at a point on the northern boundary of the Savile Town Allotment Gardens and terminating in the parish and county borough of Dewsbury in the said west riding by a junction with Aldams Road :

(Chinley and
New Mills
Widening.)

A widening of the Company’s railway from Derby to Manchester (to be called “the Chinley and New Mills Widening”) three miles and three furlongs in length situate wholly in the county of Derby commencing in the parish of Chinley Bugsworth and Brownside at a point $6\frac{1}{2}$ chains or thereabouts measured in a south-easterly direction from the bridge carrying the said railway over the public road from Chapel-en-le-Frith to Hayfield and terminating in the parish and urban district of New Mills at a point 1 mile 3 chains or thereabouts measured in a northerly direction from the north face of Bugsworth Tunnel :

(Finchley
Road to
Welsh Harp
Widening.)

A widening of the Company’s main line from London to Bedford (to be called “the Finchley Road to Welsh Harp Widening”) two miles six furlongs and nine chains in length commencing in the parish of Saint John Hampstead in the county of London at or near the western end of the Finchley Road Station and terminating in the parish and urban district of

Hendon in the county of Middlesex at or near the south-eastern end of the platform at the Welsh Harp Station.

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6. The railway and widenings shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railway of the Company as if the same had been part of the Midland Railway at the date of the passing of the Midland Railway Company (Rates and Charges) Order Confirmation Act 1891 and shall for all other purposes be part of the undertaking of the Company as authorised by the Midland Railway Consolidation Act 1844.

Rates and charges for railway and widenings.

7. The Company may make the arches of the bridges for carrying the railway and widenings over the roads next herein-after mentioned of any heights and spans not less than the heights and spans herein-after mentioned in connexion therewith respectively (that is to say):—

Height and span of bridges.

No. on deposited Plans.	Parish or other Area.	Description of Road.	Height.	Span.
22	Chinley Bugsworth and Brownside.	Public road	Ft. in. 14 0	25 feet.
7	Urban district of New Mills	Public road	13 3	25 feet.

8. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railway and widenings by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered but this enactment shall not apply to West End Lane or Minster Road in the parish of Saint John Hampstead the respective surfaces of which the Company are now liable to maintain.

Company not liable to repair surface of road level of which is not permanently altered.

9. The Company shall provide and erect for the public use a bridge not less than thirty feet wide over the River Calder leading from Mill Street West to near the Anchor Inn at Watergate in the borough of Dewsbury and shall provide and erect good and sufficient fences on both sides thereof and shall kerb and flag a footway not less than four feet wide on each side of such bridge and shall pave the roadway between such footways to the reasonable satisfaction of the respective surveyors of the Thornhill Urban District Council and the Dewsbury Corporation in whose districts the same is situate and the Company will at all times thereafter

As to bridge over River Calder and connected works.

A.D. 1900. maintain and keep in good and substantial repair the said bridge and all other works connected therewith excepting the surface of the road over such bridge which shall be repairable by the respective councils in whose district same is situate.

If the Thornhill Urban District Council (herein-after in this section called "the council") shall obtain the necessary land and shall cause the said street known as Mill Street West to be continued to the above-intended bridge over the River Calder in a position to be reasonably approved by the engineer of the Company and shall cause such continuation to be paved metalled flagged kerbed channelled and drained the Company shall pay to the council the sum of five hundred and fifty pounds and the said road shall be and become vested in the council for the purposes and to the extent to which public streets are vested in urban authorities and shall thereafter be a highway repairable by the inhabitants at large.

Within a period of two months after the said intended bridge is completed as aforesaid and dedicated to the public use the council shall pay to the Company the sum of one thousand pounds as and for a contribution towards the expenses of making the said intended bridge.

The following provisions with respect to the council shall have effect (that is to say):—

(1) The council may from time to time borrow the said sum of one thousand pounds and may mortgage their district fund and general district rates to secure the repayment of the moneys borrowed with interest:

(2) The powers of borrowing money by this Act given to the council shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the council may borrow under that Act any sum which they may borrow under this Act shall not be reckoned:

(3) A person lending money to the council shall not be bound to inquire as to their observance of any provisions of this Act or be bound to see to the application or be answerable for any loss or misapplication of such money or any part thereof:

(4) Subject to the provisions of this Act section 236 (Form of mortgage) section 237 (Register of mortgages) section 238 (Transfer of mortgages), and section 239 (Receiver may be appointed in certain cases) of the Public Health Act 1875 shall be applicable to mortgages made by the council under the provisions of this Act and to the appointment of a receiver by the mortgagees;

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(5) Subject to the provisions of this Act the council shall pay off all money borrowed by them under the powers of this Act within sixty years from the time or respective times of borrowing the same by any one or more of the methods following (that is to say) :—

(A) By equal yearly or half-yearly instalments of principal and interest combined ;

(B) By equal yearly or half-yearly instalments of principal and interest on the amount of principal from time to time remaining unpaid ;

(C) By any one or more of the methods including a sinking fund mentioned in the Local Loans Act 1875 and sections 13 14 and 15 of the Local Loans Act 1875 shall so far as may be apply to the payment off of money borrowed under this Act :

(6) If the council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments or by means of a sinking fund the council may from time to time reborrow the same but all moneys so reborrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligation of the council with respect to the repayment of the loan and the provision to be made for such repayment shall not be diminished by reason of such reborrowing :

(7) The clerk to the council shall within twenty-one days after the expiration of each year during which any sum is required to be set apart for a sinking fund or any instalment is required to be paid by them under this Act transmit to the Local Government Board a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or invested by the council for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the clerk shall be liable to a penalty of not exceeding twenty pounds which shall be paid to the Local Government Board and shall be recoverable by that Board in the same manner as penalties recoverable under the Public Health Act

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1875 in a summary manner may be recovered by parties aggrieved within the meaning of that Act. If it appear to the Local Government Board by such return or otherwise that the council have failed to pay any instalment or to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Act the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforced by writ of Mandamus to be obtained by the Local Government Board out of the Queen's Bench Division of the High Court of Justice and the provisions of this section shall apply mutatis mutandis to appropriations and annual repayments.

The council shall be entitled to a perpetual easement for the construction and maintenance of an intended sewer by means of a pipe not exceeding fifteen inches in diameter through the site of the Company's intended works at Savile Town in a position to be reasonably approved of by the Company's engineer and when constructed the council its servants and workmen may for the purpose of repairing altering taking up and relaying such sewer when necessary enter upon the premises of the Company without payment to the Company in respect thereof or as an alternative the Company shall at their own cost provide such easement on suitable land outside their own boundary compensating the council for any additional expense to which they may be put by the altered course of such intended sewer.

The Company shall carry the railway over Savile Road by means of a girder bridge having a single span of not less than fifty-three feet in width and having a clear headway of not less than seventeen feet in the centre and of sixteen feet for a distance of nine feet from each abutment and the Company shall leave an uninterrupted opening of not less than eleven feet between such bridge and the bridge authorised to be erected over the said road by the Midland Railway (West Riding Lines) Act 1898.

Such bridge shall as far as possible be made and kept watertight by the Company and so that the water shall not percolate or drip through the same on to the road or footpaths and the Company shall not during the construction of the works interrupt or interfere with the traffic of such road or footpaths more than may be absolutely necessary and shall during the construction of the said works keep such road and footpaths in repair.

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Any expenses incurred by the council in repairing or making good any injury caused by the Company in the execution of their works to the road footpaths sewers water mains or other works vested in or under the control of the council shall be borne and paid by the Company.

If any difference shall arise between the respective engineers of the Company and the council under this section such difference shall be referred to and determined by an engineer to be mutually nominated by such respective engineers or failing agreement by an engineer to be appointed by the Board of Trade upon the application of either party.

10.—(1) Notwithstanding anything in this Act or on the deposited plans and sections all bridges to be constructed by the Company in the county of London for carrying any road or street over the portion of the Company's railway to be widened under this Act shall be constructed so as not to lessen the present clear width of such road or street including the footway or footways and in no case shall any such bridge be of less width between the parapets thereof than forty feet measured on the square and every such bridge shall be so covered or fenced as to prevent as far as may be reasonably practicable the escape of steam smoke or other offensive effluvia into any such road or street.

Bridges over
railway in
London.

(2) If the Company reconstruct the bridge carrying Minster Road in the parish of Hampstead over their railway the said bridge shall be widened so as to be of not less width than fifty feet between the parapets thereof measured on the square.

(3) If at any time the London County Council (in this section referred to as "the council") or the vestry of the parish of Hampstead consider it desirable that the existing bridge carrying the road known as Minster Road in the parish of Hampstead over the Company's railway should be widened and improved the council or the said vestry (as the case may be) may give the Company notice in writing under their common seal requiring them to alter the same and to reconstruct the same as may be agreed between the council or the said vestry (as the case may be) and the Company and the Company shall thereupon alter and reconstruct the said bridge accordingly.

(4) When the Company shall have reconstructed and altered the said bridge in accordance with the provisions herein-before contained to the reasonable satisfaction of the engineer for the time being of the council or of the said vestry (as the case may be) the council or the said vestry (as the case may be) shall repay to the Company the necessary and proper cost of the reconstruction and alteration of the existing bridge and the works incidental thereto.

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(5) The Company shall not commence to execute any work in connexion with such alteration or reconstruction of the said bridge until plans drawings specifications and a list of prices describing the materials to be used in executing the works intended to be executed in connexion with such alteration or reconstruction of the said bridge shall have been delivered to the council or the said vestry (as the case may be) and shall have been examined and approved in writing by the engineer for the time being of the council or of the said vestry (as the case may be) and any money payable by the said vestry under this section may be borne by and paid out of any general rates made under section 161 of the Metropolis Management Act 1855 or may be borrowed under section 183 of that Act.

(6) The Company shall not execute or commence the erection of any such bridge or works as aforesaid until they shall have given to the council twenty-one days' notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and other necessary particulars of the construction of the said bridge and works and until the council shall have signified their approval of the same unless the council fail to signify such approval or their disapproval or other directions within twenty-one days after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid and the Company shall comply with and conform to all reasonable directions and regulations of the council in the execution of every such bridge and the works connected therewith so far as the same affect the roadway and shall save harmless the council against all and every expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the engineer or other officer of the council at the costs charges and expenses in all respects of the Company and subject to the provisions of sub-section (4) of this section all costs charges and expenses which the council may be put to by reason of the works of the Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand.

Building
not to be
brought
beyond
general line
&c.

11. Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful for the Company to encroach upon any part of the surface of any street or footway in the county of London or without the consent of the London County Council to erect or maintain any building beyond the general line of building in any street in that county.

For the
protection of
the vestry

12. With reference to so much of the railways and works by this Act authorised as will be situate within the parish of Saint John

Hampstead and for the protection of the vestry of that parish (in this section called "the vestry") the following provisions shall apply:—

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of Saint
John
Hampstead.

(1) Notwithstanding anything in this Act contained the Company shall not appropriate stop up or permanently interfere with the footway in the parish of Hampstead leading from Finchley Road to West End Lane nor with the branch thereof leading from the said footway to Priory Road:

(2) Where the railway or any works to be done by the Company by virtue of this Act shall or may pass over or under or so as to interfere with any sewer drain electric main or work under the jurisdiction or control of the vestry or shall or may in any way affect the sewerage or drainage of the district under their control the Company shall not commence such works until they shall have given to the vestry fourteen days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the vestry with a plan and section showing the course and inclination thereof and all other necessary particulars relating thereto and until the vestry shall have signified their approval of the same unless the vestry do not signify their approval or disapproval within fourteen days after the service of the said plan section and particulars as aforesaid. Provided that if any difference shall arise as to the said works it shall be referred to an engineer to be appointed by the Board of Trade on the application of either party and the Company shall comply with and conform to all directions and regulations of such engineer in the execution of the said works and subject to such reference as aforesaid shall provide by new altered or substituted works in such manner as the vestry shall reasonably require for the proper protection of and for preventing injury or impediment to the sewers electric mains and works herein-before referred to by reason of the said intended works or any part thereof and shall save harmless the vestry against all and every the expense to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the engineer of the vestry at the costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses occasioned by reason of such works of the Company shall be paid by the Company on demand:

(3) The Company shall make and during the construction of their works maintain to the satisfaction of the surveyor of the vestry all such temporary roadways footways bridges works and conveniences the same to be well and efficiently lighted

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and watched and every precaution taken for the due and proper protection of the public as shall be necessary for the safe and commodious ingress and egress to and from the houses on the line of the works of the Company in the said parish and for the preservation and continuance of an uninterrupted supply of gas water and electricity to the said houses and to the roads and streets and shall make good all damage or injury done to railings vaults boundary stones posts pillars walls and other private property :

- (4) All tunnels bridges arches and other works within the parish shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic and any other exceptional traffic lawfully using the streets within the said parish but also any steam roller that the vestry are using for repairing the streets or roadways and the Company shall indemnify and make good to the vestry all costs and expenses that the vestry may incur or be put to by reason of any defect or insufficiency in strength in such tunnels bridges arches or works or any neglect to properly and efficiently maintain the same as aforesaid or otherwise by reason of the said railways and works :
- (5) Whenever the Company shall break up or disturb any part of the soil or surface of any road or footway in the said parish for any of the purposes of this Act the Company shall within twelve months after any such road or footway shall have been broken up as aforesaid complete and finish the works of the Company and shall make good repair and restore every such road or footway to the satisfaction of the surveyor of the vestry and shall pave with granite cubes of such size and quality as shall be approved by the said surveyor every road or footway within the said parish under which the railway shall be constructed at the part where it passes under the same and for a distance of twenty feet on each side thereof It shall be lawful for the vestry or their surveyor at all times during the construction or repair of the said works over or under any such road or footway to have access to such works and to cause any part of such road or footway to be enclosed watched and lighted in such manner as to them or him may seem necessary and the Company shall also defray the expense incurred by the vestry in maintaining and keeping in repair all such roads and footways for one year next after the same shall have been so restored as aforesaid and every expense occasioned under this sub-section or incidental thereto shall be a debt due from the Company to the vestry :

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(6) The Company shall make full compensation to the vestry for any damage to or subsidence of any sewer drain electric main or work under their jurisdiction or control in or under any street road or footway in or under which any railways or works by this Act authorised may be executed by the Company which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of such railways or works or at any time thereafter :

(7) If any interruption in the supply of electric energy by the vestry shall be in any way occasioned either by the act or acts default or defaults of the Company or any of their contractors agents workmen or servants or any person in their employ or any or either of them the Company shall forfeit and pay to the vestry the aggregate loss or damage which the vestry may suffer by reason of such interruption :

(8) The Company shall not deposit any subsoil or materials anywhere within the parish and outside their works so as to cause any nuisance or obstruction to any persons using the streets roads or footways within the said parish :

(9) If any difference shall arise with respect to any matter under this section between the Company and the vestry or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the Board of Trade and such arbitrator shall have regard to the duties of the vestry in respect of any of their works or apparatus so affected and if he thinks fit require the Company to execute any temporary or other works so as to avoid interference with any purpose for which such works or apparatus is used :

(10) So far as relates to all property acquired by the Company in the said parish section 133 of the Lands Clauses Consolidation Act 1845 shall be read as if the words "general district or other local rate" were included therein.

13.—(A) If at any time the county council of Middlesex (in this section called "the county council") widen the road known as Child's Hill Lane on either or both sides of the bridges referred to in sub-section (1) of the section of this Act the marginal note whereof is "For protection of urban district council of Hendon" the Company shall on receipt of notice in writing under the hand of the clerk of the county council so to do widen the bridges to the same width as that to which the road may be so widened by the county council and the proper costs and expenses of and incident to

For the
protection of
the county
council of
Middlesex.

A.D. 1900.

the widening of such bridges shall be repaid to the Company by the county council so soon as an order can be made for that purpose by the county council and in default of payment the amount so to be paid shall be recoverable by the Company from the county council. Provided that the Company shall not be required under this enactment to execute any work which would reduce or lessen the railway accommodation or facilities over the said bridges.

(B) The Company shall not commence nor execute any such works as aforesaid unless and until they shall have first delivered to the county council plans and drawings of the works intended to be executed and the same plans and drawings shall have been examined and approved by the county engineer and surveyor by writing under his hand or by the engineer to be appointed as herein-after provided. Provided always that if the said engineer and surveyor shall fail to approve of such works for one month after such plans and drawings have been delivered to the county council he shall be deemed to have approved them.

(C) The Company shall execute all such works as aforesaid in accordance with the said plans and drawings as approved and the Company shall subsequently maintain the same and all necessary works connected therewith in good substantial condition and so far as any such works affect the road to the satisfaction of the said engineer and surveyor.

(D) If any difference shall arise between the Company and the county council touching this section or anything to be done or not to be done thereunder the same shall be determined by an engineer to be agreed on between the Company and the county council or by an engineer to be appointed by the Board of Trade on the application of either party after notice to the other.

(E) The county council having contributed towards the purchase money paid by the Willesden Urban District Council for the estate known as the Dollis Hill Estate in the parish or urban district of Willesden the following provision shall have effect:—

If the Company shall at any time acquire any portion of the lands in the parish and urban district of Willesden forming part of the Dollis Hill Estate now vested in the Willesden Urban District Council that council shall pay to the county council one fourth part of any purchase or compensation money that may be received by them on account or in respect of the consideration for the acquisition by the Company of any part of the Dollis Hill Estate aforesaid.

Provided that any money so paid to the county council shall be applied in reduction of the said contribution of the county council

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or if the Willesden Urban District Council shall decide to apply the whole of the said purchase or compensation money in the acquisition of open spaces in the parish and urban district of Willesden they shall be at liberty in lieu of paying the said one fourth part of the purchase or compensation money to the county council to apply the same in part payment of the purchase money of any open space to be acquired by them with the approval of the county council.

14. The following provisions shall have effect for the protection of the urban district council of Hendon (in this section called "the council") (that is to say):—

For protec-
tion of
urban
district
council of
Hendon.

(1) The new bridge to be constructed for carrying the Finchley road to Welsh Harp widening over the public road known as Child's Hill Lane shall be a girder bridge of a span of at least forty feet measured on the square and the underside of the superstructure shall be not less than twelve inches higher than the underside of the girders of the adjoining and existing bridge. The new bridge over Child's Hill Lane shall not have a greater width than thirty-seven feet and its western side shall be at least ten feet from the eastern side of the existing bridge. The Company shall within seven years reconstruct so much of the existing bridge which carries the railway over the said road as has a present span of thirty feet so that the same shall thereafter have a span of at least forty feet measured on the square and shall not lower the present level of the underside of the existing girders. The abutments of the new bridge and of the north abutment of the bridge to be reconstructed shall be built with white glazed brick panels to the extent of two thirds of their area:

The space under the existing and the new and the reconstructed bridges shall be dedicated by the Company as public highway under the control in all respects of the council:

The Company shall pay the council the sum of one thousand two hundred and fifty pounds towards the cost of lowering the road under the bridge in Child's Hill Lane and the approaches thereto and the necessary works occasioned by such lowering and such sum of one thousand two hundred and fifty pounds shall be paid as to one moiety within one month after the council shall have given notice to the Company of their intention to proceed with such works and as to the remaining moiety when the completion of such works is certified by the engineer to the council:

(2) The public road numbered on the deposited plans 21A in the parish of Hendon and known as Claremont Road shall not

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be altered nor shall the road be interfered with in any way whatsoever :

(3) The arch carrying the existing lines of railway over the road known as Warner's Road shall not be extended more than is necessary to put the fronts and parapets thereon and the Company shall construct such fronts and parapets :

(4) Unless otherwise agreed between the council and the Company the Company shall not in any way impede the public traffic along more than one half the width of any road in the district of the council and where the surface of any such road has been interfered with or disturbed by the Company in constructing the works or performing the operations by this Act authorised the Company shall well and sufficiently and to the reasonable satisfaction of the council restore the surface so interfered with or disturbed and shall keep the same in efficient repair for one year from such restoration :

(5) Where any of the works to be done under and by virtue of this Act shall or may interfere with any sewer drain water pipe watercourse gas pipe hydrant defence or work under the jurisdiction or control of the council or shall or may in any way prejudicially affect the sewerage or drainage of the district under their control or the outfalls of their drainage the Company shall not commence such works until they shall have given the council fourteen days' previous notice in writing of their intention to commence the same by leaving such notice at the office of the council for the time being with a plan and section showing the course and inclination thereof and other necessary particulars relating thereto and if within fourteen days after service or delivery of the plan section and particulars as aforesaid the council signify their disapproval thereof then the Company shall not commence nor execute any such works unless and until a plan and section thereof shall have been approved (unless otherwise agreed) by an engineer to be appointed by the Board of Trade on the application of the Company :

(6) In case of any difference or dispute arising between the surveyor to the council and the engineer to the Company touching or concerning the construction or carrying into effect of any of the works matters or things required to be done or performed by the Company under this Act the same shall be referred to and settled by an engineer or other fit person to be agreed upon or failing agreement to be nominated as referee by the Board of Trade on the application of either party after notice to the other.

15. For the protection of the Gas Light and Coke Company (in this section referred to as "the gas company") the following provisions shall have effect (that is to say):—

A.D. 1900.
For the
protection of
the Gas
Light and
Coke Com-
pany.

(1) All works matters or things which under the provisions of the Railways Clauses Consolidation Act 1845 or this Act the Company may be empowered or required to do or execute with reference to the mains pipes syphons or other works of the gas company shall be done and executed by and at the cost of the Company but to the reasonable satisfaction and under the direction of and in such manner as shall be reasonably required by the engineer of the gas company and such works matters or other things shall not be commenced until after ten days' previous notice thereof in writing shall have been given to the gas company. Provided always that if the gas company shall elect themselves to execute any portion of the works matters and things which the Company may by this Act be empowered or required to do or exercise with reference to or affecting the mains pipes syphons apparatus or other works of the gas company and of such their election shall give two days' notice in writing to the Company by letter addressed to the same at their head office in Derby the gas company may themselves execute that portion of the said works matters and things and the reasonable expense of and incident to the executing the same shall be repaid by the Company to the gas company on demand:

(2) If any interruption whatsoever in the supply of gas by the gas company or any loss of gas shall be in way occasioned to or sustained by the gas company by reason of any act or omission of the Company or of any of their contractors agents workmen or servants the Company shall pay to the gas company all costs incurred by them in making good such interruption and in addition shall pay to the gas company the value of the gas so lost:

(3) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the gas company all costs losses damages and expenses which may be occasioned to the gas company or to any of their mains pipes syphons apparatus property works and conveniences by reason of the execution or failure of any of the intended works other than those ordered or directed by the engineer of the gas company or of any act or omission other than as aforesaid of the Company or of any of their contractors agents workmen or servants and the Company will effectually indemnify and hold harmless the gas company from all claims and demands upon

A.D. 1900.

For the
protection of
the London
and North
Western
Railway
Company.

on against them by reason of such execution or failure or of any such act or omission.

(4) Any difference arising between the Company and the gas company respecting any of the matters referred to in this enactment shall be settled at the request of either party by an engineer to be appointed by the President of the Institution of Civil Engineers.

16. The following provisions for the protection of the London and North Western Railway Company (in this section called "the North Western Company") shall apply and have effect:—

(1) The Company shall carry the Finchley Road to Welsh Harp Widening by this Act authorised under the Hampstead Junction Railway of the North Western Company and the works and lands connected therewith by means of a wrought-iron or steel girder bridge with wrought-iron or steel flooring such bridge to be of the full width of the property of the North Western Company at the proposed point of crossing as shown by the green verge line on the plan herein-after referred to the upper service of the flooring and girders of the bridge shall be at an uniform level of one foot four inches at least below the level of the existing rails of the said railway at the point of crossing and all works affecting the North Western Company shall be constructed only in accordance with plans and sections to be previously submitted to and reasonably approved by Francis Stevenson or other the principal engineer for the time being of the North Western Company (in this section called "the principal engineer") and so as to keep open at all times the lines of railway and other works in connexion therewith of the North Western Company:

(2) In constructing and maintaining the said widening where the same affects the said railway works or lands of the North Western Company the Company and their contractors servants agents or workmen shall not obstruct impede or interfere with the free and uninterrupted and safe user of the said railway or other works of the North Western Company:

(3) The Company shall at all times maintain all the works affecting the North Western Company in substantial repair and good order to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Company fail so to do the North Western Company may make or do as well in and upon the lands of the Company or the land acquired by them for the purposes of this Act as their own lands all such works and things as the principal engineer may reasonably think requisite in that behalf and the sum from time to time certified by such principal engineer to be the reasonable amount of such

their expenditure shall be repaid to the North Western Company by the Company : A.D. 1900.

(4) The Company shall not (except with the previous consent of the North Western Company under their common seal) take use or interfere with any land or property of that company, but the Company may purchase and take and the North Western Company may and shall sell and grant accordingly an easement or right of using so much of the lands of that company for the construction of the said widening under and affecting the said railway of the North Western Company in accordance with the provisions of this section as is marked red on the plan signed by John Allen McDonald on behalf of the Company and by Francis Stevenson on behalf of the North Western Company. The amount to be paid for the acquisition of such easement shall be settled in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement :

(5) If it shall be necessary in carrying out the works by this Act authorised to interfere with any weighbridge weighing machine house or other building or conveniences of the North Western Company now standing upon or near to the land coloured red upon the said plan the Company shall first construct another weighbridge weighing machine house or other buildings and conveniences on sites and according to plans to be agreed upon by the principal engineer and shall as soon as practicable after the completion of the said works if so required by the said principal engineer reconstruct such weighbridge weighing machine house and other buildings and conveniences on their present site or as near thereto as practicable or on such other site as may be agreed upon by the said principal engineer and to his satisfaction and at the cost in all things of the Company :

(6) The Company shall on demand pay to the North Western Company all reasonable expenses of the employment by the North Western Company during the construction of the said works for and with respect to the said crossing of or affecting the North Western Company of a sufficient number of inspectors and watchmen to be appointed by the North Western Company for watching their said railway and works with reference to and during the execution of the works of the Company and for preventing as far as may be all interference danger and accidents from any of the operations or from the acts and defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :

A.D. 1900.

- (7) The Company shall be responsible for and make good to the North Western Company all costs losses damages and expenses from time to time occasioned to the North Western Company or to their said railway or any other of their works and property or to the traffic on the said railway or to any company or person using the same by reason of the execution or failure of the works by this Act authorised or by any act or omission of the Company or any of the persons in their employment or their contractors agents or others and the Company shall effectually indemnify and hold harmless the North Western Company from all claims and demands upon or against them by reason of any such execution or failure or of any such act or omission as aforesaid :
- (8) The Company and the North Western Company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same will be executed :
- (9) If any difference shall arise between the respective engineers of the Company and the North Western Company as to the reasonableness of the plans and sections herein-before provided for such difference shall be referred to and determined by an engineer to be mutually nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Company or the North Western Company.

For the
protection of
the North
Metropolitan
Railway and
Canal Com-
pany.

17. Inasmuch as the widening of the Company's main line commencing in the parish of Saint John Hampstead in the county of London and terminating in the parish and urban district of Hendon in the county of Middlesex by this Act authorised is intended to be carried by a bridge or viaduct over certain lands in the said parish of Hendon used as a reservoir for the Regent's Canal belonging to the North Metropolitan Railway and Canal Company it is expedient to make provisions in respect thereof :

- (A) Therefore except as herein-after mentioned nothing in this Act contained shall take away diminish or affect any of the rights privileges or powers vested in the North Metropolitan Railway and Canal Company (in this section called "the canal company") and the Company shall not without the consent of the canal company under their common seal divert intercept cut off take use or diminish any of the waters in the said reservoir or which may be taken for the use of or which supply the reservoir or injure or interfere with any of the works of the reservoir or any land belonging to the canal company and the Company shall not without such consent as aforesaid make any

A.D. 1900.

deviation from the level of the railway as delineated in the deposited plans and sections thereof so as to lower such level where it crosses the reservoir and the Company shall not make the widening by this Act authorised of a greater width over the reservoir than forty-two feet and shall make such widening immediately adjoining on the north-east side of the existing bridge or viaduct of the Company over the said reservoir and such widening or new bridge or viaduct shall be constructed of the same height as and on a level with the existing bridge or viaduct of the Company and nothing herein contained shall compel the canal company to convey to the Company the fee simple of the land belonging to the canal company over which the works by this Act authorised are intended to pass but such land shall remain vested in the canal company subject nevertheless to the right of the Company and their successors for ever to maintain the works hereby authorised and to have use and possess such way and passage for the railway and works by means of the bridge or viaduct over the reservoir as are hereby provided for together with all rights and easements necessary to their due use and enjoyment of the same :

- (B) For the purpose of carrying the railway across the reservoir of the canal company the Company shall make and maintain a bridge or viaduct of brick stone or iron over the reservoir on the land of the canal company in the said parish of Hendon and the arches of the bridge or viaduct shall not be of less than thirty feet span measured from the face of each abutment or pier at springing level :
- (c) The bridge or viaduct and all works connected therewith shall be constructed and for ever thereafter maintained in good and substantial repair by the Company and so far as relates to all necessary precautions for the safety of the reservoir the water in the reservoir and the works connected with the reservoir the bridge or viaduct and all the works connected therewith and all future repairs that may be required from time to time shall be constructed and performed according to plans and specifications to be submitted to and subject to the reasonable approval of the engineer of the canal company previously to the commencement of the works which shall be commenced carried on and completed under the superintendence and to the reasonable satisfaction of such engineer and in case during the progress of any of the works any damage shall be occasioned to the reservoir or the works thereof the Company shall under such superintendence and to such reasonable satisfaction as aforesaid restore the same to the same state and

A.D. 1900.

condition as before the happening of such damage and if the works connected with the bridge or viaduct or any part thereof shall be imperfectly constructed or if at any time or times thereafter the bridge or viaduct or any part thereof shall be out of repair or if in sinking the foundations for the abutments of the bridge or viaduct or the works connected therewith or otherwise any loss of water or injury to the reservoir shall arise and notice thereof in writing shall be given by the canal company to the Company and the Company shall not for the space of fourteen days after such notice shall have been given or forthwith if the nature of the case shall require it well and sufficiently and effectually amend such construction or repair such bridge or viaduct or prevent such loss of water or remove such obstruction as the case may be under such superintendence and to such reasonable satisfaction as aforesaid and complete the same with all reasonable expedition it shall be lawful for the canal company from time to time to make good such construction to perform such repairs to prevent such loss of water or to remove such obstruction as the case may require and the Company shall from time to time pay to the canal company all the costs and expenses which may be incurred by them from time to time in and about the superintendence and construction of the said works and repairs :

(D) The bridge or viaduct and all the works connected therewith shall be completed within the period of twenty-four months from the day on which the same shall be commenced and if in the execution of any of the works by this Act authorised to be made or by reason or in consequence of any act neglect or omission of the Company or their agents servants or workmen or if in sinking the foundations of the abutments of the bridge or viaduct or in consequence of any of the works when made the water of the reservoir shall leak escape or run to waste the Company shall pay to the canal company the sum of ten pounds as and for liquidated damages for every nine thousand cubic feet of water which shall have so leaked escaped or run to waste and in the same proportion for any greater or less quantity :

(E) Nothing herein contained shall extend to prevent the canal company or any person whomsoever lawfully using the said reservoir from recovering from the Company any special damage that may be sustained by them or in consequence of the escape of water out of the reservoir if the same shall be caused or happen by reason of the making or maintaining the bridge or viaduct or the works connected therewith beyond the amount of such liquidated damages as aforesaid :

A.D. 1900.

(F) Before commencing or during the construction of the said bridge or viaduct the Company shall on land belonging to the canal company and abutting on or forming part of the said reservoir and to be reasonably approved by the engineer of the canal company excavate and remove the soil of such land to a depth to be reasonably approved by the engineer of the canal company so as well and efficiently to enlarge the said reservoir to such an extent as to increase the capacity thereof to the extent of three thousand cubic yards at the least beyond the present capacity thereof and the Company shall in making such enlargement of the said reservoir do all such works and things as may be necessary or expedient for the retention of water therein and preservation of the banks thereof and such enlargement and works shall be made in accordance with plans and sections to be submitted to and reasonably approved by the engineer of the canal company and the Company shall pay compensation for any diminution of the surface value of the land so excavated and also the reasonable fees and expenses of such engineer in respect of the examination and approval of such plans and sections and in and about the superintendence of the said works and in and about the superintendence of all other works affecting the canal company by this Act authorised;

(G) In executing the works by this Act authorised the Company shall by means of watercourses pipes or drains to be constructed to the reasonable approval of the engineer of the canal company and to be at all times maintained by the Company provide so far as is practicable for the flow into the reservoir of all such surface or other water as would or might from time to time but for the works by this Act authorised flow into the said reservoir:

(H) Should any difference arise between the Company and the canal company touching anything to be done under this section such difference shall be determined by an engineer to be appointed by the Board of Trade upon the application of either party:

(I) Before commencing the construction of the said bridge or viaduct or entering upon any lands of the canal company or the said reservoir the Company shall serve the canal company with a notice to treat in respect of the easement by this section authorised to be acquired by them from the canal company and the compensation to the canal company shall be ascertained and paid in accordance with the provisions in that behalf of the Lands Clauses Consolidation Act 1845.

A.D. 1900.

For the
protection of
P. H. G.
Powell-
Cotton.

18. The following provisions shall unless otherwise agreed apply and have effect for the protection of Percy Horace Gordon Powell-Cotton and his trustees (in this section called "the owners") :—

(1) The Company shall not use any part of the sidings to be placed upon the land to be acquired from the owners and coloured red upon the plan signed by John Allen McDonald on behalf of the Company and by Percival Fox Tuckett on behalf of the owners for any purpose except for the standing of empty passenger trains :

(2) The Company shall acquire all the land of the owners up to Westbere Road and shall leave a strip of land twenty feet wide along the whole length of such Westbere Road and shall at their own expense plant and maintain the same with shrubs and trees to the reasonable satisfaction of the owners and shall at the like expense and to the like satisfaction fence off the said lands from the Westbere Road by an open unclimbable iron fence seven feet high such planting and fencing to be carried out within one year from the Company obtaining possession of such lands and to be maintained by the Company.

For the
protection of
the vicar and
church-
wardens of
St. Cuthbert
Kilburn.

19. Notwithstanding anything in this Act the Company shall not enter upon take or use any portion of the lands and hereditaments distinguished by the Nos. 26 and 27 in the parish of Saint John Hampstead on the deposited plans without the previous consent in writing of the vicar and churchwardens for the time being of the ecclesiastical parish of Saint Cuthbert Kilburn.

Power to
make roads
and foot-
paths.

20. Subject to the provisions of this Act the Company may in the lines shown upon the deposited plans and so far as the same are shown on the deposited sections in accordance with the levels shown on those sections make the new roads and footpaths herein-after described with all proper works and conveniences connected therewith and may exercise the powers herein-after mentioned and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say) :—

(New road
at Mas-
borough.)

The Company may make a new road wholly situate in the parish and borough of Rotherham in the west riding of the county of York commencing by a junction with the public road known as the Kimberworth Road and terminating by a junction with the public road known as Masborough Street at or near the southern end of Victoria Street and the Company may stop up and discontinue and appropriate to the purposes of the Company the sites of so much of Kimberworth Road as lie

between a point thereon 2 chains or thereabouts west of the bridge carrying the Company's main line over the said Kimberworth Road and the eastern end of the said bridge and of so much of Masborough Street as lies between the eastern end of the said bridge and a point on the said street $1\frac{1}{2}$ chains or thereabouts east of the said bridge :

A.D. 1900.

The Company may make a new road in the parish of Norton (detached) in the county of Derby commencing by a junction with the public road crossing the Company's railway from Chesterfield to Sheffield at the south-west end of the Millhouses and Ecclesall Station thereon and terminating by a junction with the public road known as Archer Road at its south-western end :

(New road and footpath at Ecclesall.)

The Company may make a new footpath in the parish of Ecclesall Bierlow in the city and county borough of Sheffield in the west riding of the county of York commencing by a junction with the road crossing the Company's railway from Chesterfield to Sheffield 46 chains or thereabouts measured in a north-easterly direction from Millhouses and Ecclesall Station thereon and terminating at the north-west end of the footbridge over the River Sheaf on the west side of the said road and may stop up and discontinue and appropriate to the purposes of the Company the site of so much as lies between the boundaries of the Company's property of the following footpaths :—

- (1) The footpath from Abbey Dale Road to the said footbridge ; and
- (2) The footpath in the parish or liberty of Beauchief in the rural district of Norton in the county of Derby which crosses the Company's said railway on the level 18 chains or thereabouts north-east of the Millhouses and Ecclesall Station :

The Company may make a new bridle road and footpath in the parish and urban district of Monk Bretton in the west riding of the county of York commencing by a junction with the existing public bridle road and footpath which crosses the Company's Stairfoot and Cudworth Branch in Lund Wood and terminating by a junction with the said bridle road and footpath at a point thereon 4 chains or thereabouts measured in an easterly direction from the said branch and may stop up and discontinue so much of the said existing bridle road and footpath as lies between the points of commencement and termination of the said new bridle road and footpath :

(New bridle road and footpath Lund Wood.)

The Company may make a new footpath in the county of Derby commencing in the parish and borough of Ilkeston at or near

(New footpath at Shipley Gate.)

A.D. 1900.

the southern end of the bridge carrying the existing public footpath from Cotmanhay to Eastwood over the Company's main line near Shipley Gate Station and terminating in the parish of Shipley by a junction with the road and public footpath from Eastwood to Shipley near to and on the north-east side of the said Shipley Gate Station and may stop up and discontinue so much of the said existing footpath as extends in a north-westerly direction from the point of commencement of the intended new footpath to the said road and may appropriate for the purposes of the Company so much of the site thereof as lies between the boundaries of the Company's property and may stop up and discontinue and extinguish all rights of footway over the level crossing at the north-west end of Shipley Gate Station:

(Stopping of
road at
Blackwell.)

The Company may stop up and discontinue and extinguish all rights of way over and appropriate to the purposes of the Company so much as lies between the boundaries of the Company's property of the road in the parish of Blackwell in the county of Derby which crosses over the Company's Erewash Valley Railway by a bridge 15 chains or thereabouts north of the Westhouses and Blackwell Station:

(New foot-
path at
Ilkeston
Junction.)

The Company may make a new footpath in the parish of Cossall in the county of Nottingham commencing by a junction with Station Road and terminating by a junction with the footpath which crosses the Company's Babbington Branch on the level at or near the said station at a point $26\frac{1}{2}$ chains or thereabouts east of the said first-mentioned level crossing And may stop up and discontinue and appropriate for the purposes of the Company the site of so much of the existing footpath as lies between the western side of the said level crossing and the eastern side of the Company's said Babbington Branch.

For the
protection of
the Not-
tingham
Corporation.

21. For the protection and benefit of the mayor aldermen and citizens of the city of Nottingham (in this section called "the Corporation") the following provisions shall apply and have effect:—

In carrying the new footpath in the parish of Cossall in the county of Nottingham by this Act authorised over the railway the Company shall make provision to enable the corporation to carry a twelve-inch gas main either under the roadway or by the side of the girders of the bridge and until the work for carrying such main over or by the side of such bridge has been completed the provisions of the agreement dated the twenty-sixth day of October one thousand eight hundred and ninety-two and made between the Company and the corporation

in respect of the existing gas main under the railway shall A.D. 1900.
continue to apply.

22. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate to the purposes of extending their stations sidings warehouses engine sheds workshops coal wharves depots mineral goods and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the labouring classes who may be displaced under the powers of this Act and for other purposes connected with their undertaking all or any of the lands houses and buildings following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto and may exercise the powers herein-after mentioned (that is to say):—

Power to
acquire lands
for general
purposes.

In the west riding of the county of York—

So much of the lands in the parish of Bentham lying on the north side of and adjoining the Company's railway from Lancaster to Skipton as are distinguished by the number 1 on the deposited plan; (High Bentham.)

And the Company may divert and carry along the northern side of the said lands the public footpath which now passes through the said lands and along the northern side of the said railway;

Lands in the parish and urban district of Swinton lying on the east side of and adjoining the Company's railway from Derby to Leeds and north of and adjoining Bridge Street leading to the Swinton Station; (Swinton.)

Lands in the parish of Sheffield in the city and county borough of Sheffield lying on the south side of and adjoining Harmer Lane near its junction with Sheaf Street; (Sheffield.)

Lands in the said parish city and county borough lying on the east side of and adjoining Pond Street and west of and adjoining the timber yard and premises occupied by H. Newsum Sons and Company Limited;

In the county of Derby—

Lands in the parish and urban district of Heanor lying on the east side of and near to the Company's railway from Trent to Clay Cross and adjoining the Company's property and on both sides of and adjoining Lee Lane; (Heanor Junction.)

Lands in the parish and urban district of Alfreton adjoining and on the east side of the Company's railway from Trent to Mansfield and north of and adjoining the Pye Bridge chemical works; (Pye Bridge.)

A.D. 1900.

Lands in the said parish and urban district on the west side of and adjoining the Company's Erewash Valley Railway and on the north-west side of the sidings from the Alfreton Ironworks :

In the county of Nottingham—

(Kirkby
Junction.)

Lands in the parish and urban district of Kirkby in Ashfield lying on the east side of and adjoining the Company's railway from Nottingham to Mansfield and north of and adjoining the brick works near Kirkby station and west of and adjoining the said railway at or near the northern end of the Kirkby colliery sidings ;

(Beeston.)

Lands in the parish city and county borough of Nottingham lying on the south-east side of and adjoining the Company's railway from Beeston to Nottingham near to and on the south-east side of the Beeston sidings thereon ;

(Notting-
ham.)

Lands in the said parish city and county borough lying on the north side of and adjoining the Queen's Road situate between the bridge carrying the Great Central Railway over that road and the London Road :

In the county of Gloucester—

(Hemp-
stead.)

Lands in the parish of Hempstead lying on the west side of and adjoining the Gloucester and Berkeley Canal and north of and near to the bridge carrying the Company's Gloucester New Dock Branch now in course of construction over the said canal ;

(Mangots-
field.)

Lands in the parishes of Pucklechurch and Westerleigh lying on the west side of and adjoining the Company's railway from Bristol to Gloucester and at or near the Parkfield Colliery ;

(Bristol.)

Lands in the parish city and county borough of Bristol lying between and adjoining Thomas Street and Victoria Street and south of Long Row :

In the county of Glamorgan—

(Swansea.)

Lands in the parishes of Saint Thomas Swansea and Llansamlet Lower Urban in the county borough of Swansea lying on both sides of and adjoining the Company's Swansea Vale Railway north of and near to Saint Thomas's Station thereon and lands in the said parish of Saint Thomas Swansea lying between the River Tawe and the new cut and north of and adjoining the Atlantic Patent Fuel Works :

In the county of Middlesex—

(Elstree.)

Lands in the parish of Edgware and in the parish and urban district of Hendon lying on both sides of and adjoining the

Company's railway from Mill Hill to Elstree at and near the southern end of the Elstree tunnel; A.D. 1900.

Lands in the parish and urban district of Willesden lying on the north-west side of and adjoining the Company's railway from Acton to Welsh Harp and between Dudding Hill Station and the Edgware Road: (Dudding Hill.)

Provided always that notwithstanding anything contained in this Act or shown on the deposited plans or described in the deposited books of reference the Company shall not without the consent in writing of the Willesden Urban District Council under their common seal first had and obtained acquire enter upon take use or appropriate any lands houses buildings or property now belonging or hereafter belonging to the said council in the parish and urban district of Willesden nor shall the Company without such consent as aforesaid use for railway works any lands houses buildings or property belonging to the Company or to any other person within fifty feet from the eastern boundary of the Dollis Hill Estate of the said council.

23. Notwithstanding anything in this Act the lands in the parish of Bristol which the Company are by this Act authorised to acquire shall remain and the Company in respect of those lands shall be subject to the provisions of the Bristol Improvement Acts 1840 and 1847.

Lands in Bristol to remain subject to provisions of Bristol Improvement Acts.

24. Notwithstanding anything contained in this Act or shown upon the deposited plans nothing in this Act shall take away lessen alter or prejudice the right of way or free passage on each side of the New Cut at Swansea vested in the trustees by section 86 of the Swansea Harbour Act 1854 as now enjoyed by the public or the public rights over the carriage road in the said section mentioned and the occupation road and footpath on the east side of the north dock or the rights conferred on the trustees by sections 86 and 87 of the said Swansea Harbour Act 1854.

Saving rights of the Swansea Harbour Trustees and the public.

25. For the protection of the Governor and Company of the New River brought from Chadwell and Amwell to London (in this section called "the New River Company") the following provisions shall unless otherwise agreed between the Company and the New River Company have effect (that is to say):—

For the protection of the New River Company.

- (1) The purchase by the Company of land in the parish and urban district of Willesden as described in section 22 of this Act shall be subject to the easement and right of the New River Company of constructing placing laying inspecting maintaining cleansing repairing conducting or managing the Aqueduct No. 4. authorised by the New River Company's Act 1897 and

A.D. 1900.

any other works authorised by the said Act in connexion therewith (in this section called "the aqueduct").

(2) Where the aqueduct crosses any land which the Company are authorised to acquire under this Act the New River Company shall before commencing to construct it give one month's notice to the Company of their intention so to do and the Company shall within that period indicate how much of the land crossed by the aqueduct they propose to acquire and for the whole length of the land so indicated the aqueduct shall be placed in a culvert or tunnel to be constructed and ever afterwards maintained by the New River Company but the expense of such construction shall be borne by the Company and be paid by them to the New River Company. Such culvert or tunnel shall so far as conveniently may be similar to and be a continuation of the culvert or tunnel intended to be constructed by the New River Company for the purpose of passing the aqueduct under the Company's adjoining railway from Acton to Welsh Harp and shall be provided with all proper and convenient means of access and ventilation:

(3) The New River Company may if they deem fit employ watchmen or inspectors to watch and inspect during the period of the construction of any works whereby the aqueduct or the culvert or tunnel wherein the same shall be placed will or may be interfered with or affected and the reasonable wages of such watchmen or inspectors shall be borne by the Company and be paid by them to the New River Company:

(4) In the event of any works constructed by the Company on lands acquired by them under the powers of this Act causing any injury to the aqueduct or the culvert or tunnel wherein the same shall be placed either during the construction thereof or after the same shall have been completed or in the event of any loss accruing to the New River Company from any interruption of their supply of water through any act or default of the Company their agents or contractors the Company shall be answerable for the same and shall pay to the New River Company all damages and make good all loss arising therefrom:

(5) Any dispute or difference which may arise between the New River Company and the Company with respect to the provisions of this section or in any way arising thereout or as to any works affecting the New River Company shall be settled by arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of the New River Company and the Company or either of

them and the Arbitration Act 1889 shall apply to such arbitration. A.D. 1900.

26. Subject to the provisions of this Act the Midland and North Eastern Committee may enter upon take use and appropriate for purposes connected with their undertaking all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :— Power to Midland and North Eastern Committee to acquire lands.

In the west riding of the county of York—

Lands in the parish and urban district of Ilkley lying on the south side of and adjoining the railway of the said committee near to and east of the Ilkley Station thereon. (Ilkley.)

27. Subject to the provisions of this Act the Midland and Great Northern Committee may enter upon take use and appropriate for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :— Power to Midland and Great Northern Committee to acquire lands.

In the county of Norfolk—

Lands in the parish of Weybourne lying on the north side of and adjoining the railway of the said committee from Melton Constable to Cromer and east of and adjoining the public road from Bodham to Weybourne known as Sandy Hill Lane; (Weybourne.)

Lands in the parish of Sheringham lying on the north side of and adjoining the railway of the said committee from Melton Constable to Cromer and west of and adjoining the public road known as Mill Lane 30 chains or thereabouts east of Sheringham Station; (Sheringham.)

Lands in the parish of Kelling in the rural district of Erpingham lying on the west side of and adjoining the railway of the said committee from Melton Constable to Cromer and north of and near to the public road leading from Bodham to Kelling which crosses the said railway; (Kelling.)

Lands in the parishes of Melton Constable and Briston lying on both sides of and adjoining the railways of the said committee from Norwich and Yarmouth to Lynn and Cromer at and near Melton Constable Station; (Melton Constable.)

Lands in the parish of Great Yarmouth in the county borough of Great Yarmouth lying on the east side of and adjoining the railway of the said committee from Melton Constable to Yarmouth Beach and lying between Kitchener Road and Salisbury Road; (Great Yarmouth.)

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Great
Yarmouth.
South Town.)

(Great
Yarmouth
Cobham
Island.)

Lands in the said parish and county borough lying east of Acle Road and 20 chains or thereabouts north-east of the Great Eastern Railway Station at Vauxhall;

Lands in the parishes of Great Yarmouth and Gorleston in the said county borough lying on the south side of and adjoining Breydon Water and east of the said committee's authorised Great Yarmouth and Lowestoft Railway.

Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

28. The Midland and Great Northern Committee shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Midland and Great Northern Committee shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Midland and Great Northern Committee and the amount of such costs and charges shall be a debt due from the Midland and Great Northern Committee to the Crown and shall be recoverable as a Crown debt or summarily.

For the
protection of
the corpora-
tion of Great
Yarmouth.

29. For the protection and benefit of the mayor aldermen and burgesses of the borough of Great Yarmouth (in this section called "the corporation") the following provisions shall apply and have effect unless otherwise agreed between the corporation and the Midland and Great Northern Committee (in this section called "the committee") (that is to say):—

- (1) Notwithstanding anything contained in this Act the committee shall not except with the consent of the corporation acquire any part of the lands numbered 1 to 6 inclusive on the deposited plans for the borough of Great Yarmouth other than a strip not exceeding one hundred and sixty feet in width on the east side of the existing railway of the committee and south of Salisbury Road nor shall they except with the like consent take or interfere with any part of Salisbury Road and any of the lands numbered as aforesaid which may be acquired by the

committee shall be used only for the purposes of their railway and no part thereof shall be sold demised or otherwise parted with by the committee : A.D. 1900.

(2) The committee shall be at liberty to close and to extinguish the public rights over the existing level crossing of Beaconsfield Road and so much of that road as is situate within one hundred and sixty feet east of the existing railway of the committee in addition to any further portions of such road which may be necessary to form proper and convenient approaches to the subway mentioned in the next succeeding sub-section :

(3) In the event of the committee closing the level crossing referred to in the last preceding sub-section they shall at their own expense if and when required by the corporation construct and for ever after maintain to the reasonable satisfaction of the corporation and in accordance with plans sections and specifications submitted to and reasonably approved by them a subway (with proper approaches thereto) for foot passengers not less than eight feet in width for the use of the public in the place of the said level crossing and of so much of Beaconsfield Road as shall be closed by the committee All works for draining and lighting the subway shall be constructed by the committee under the foregoing provisions of this sub-section but the maintenance of the works for draining the subway and the artificial lighting of the subway shall be thereafter effected by and at the expense of the corporation :

(4) In the event of the committee closing the level crossing referred to in sub-section (2) of this section they shall if and when required by the corporation (in addition to the said subway if constructed and in addition to the level crossings mentioned in section 32 of the Great Yarmouth and Stalham (Light) Railway Act 1876) permit the corporation to construct a road across and on the level of the railway of the committee at a point to be selected by the corporation north of the site of Beaconsfield Road and thereupon the provisions of that Act and of the enactments incorporated therewith shall apply to the level crossing as if the railway had been constructed across the road in pursuance of that Act :

(5) If the committee shall acquire any part of the recreation and garden ground of the corporation (being the lands numbered 5 and 6 on the deposited plans for the borough of Great Yarmouth) the corporation may expend out of the purchase money a sum not exceeding two thousand five hundred pounds

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in preparing levelling and laying out other land of the corporation as recreation and garden ground:

(6) The railway constructed under the Yarmouth Union Railway Act 1880 shall not be used for the carriage of passengers unless and until the committee shall have carried the railway over the Caister Road by means of a bridge in lieu of the existing level crossing such bridge to be constructed subject to the following conditions:—

(A) Such bridge shall have a clear span of fifty feet and a clear minimum headway throughout of sixteen feet above the present level of the rails;

(B) The rails in Caister Road shall be removed by the committee at their own expense and the corporation shall make good and thereafter maintain the surface of the road;

(C) The committee may acquire from the corporation, and the corporation shall convey to the committee without payment such land not exceeding one quarter of an acre as may be necessary for forming an embankment to carry a double line of railway between North Denes Road and Churchill Road at a sufficient height to carry the same over Caister Road by a bridge in accordance with this sub-section but the committee shall not acquire any land now occupied by the workshops of the corporation;

(D) The committee may raise the level crossings at North Denes Road Ormond Road and Garrison Walk respectively so that in the case of North Denes Road the rails are not raised to a greater extent than two feet above their present level and so that in cases of Ormond Road and Garrison Walk the rails are not raised to a greater extent than two feet six inches above their present respective levels;

(E) The railway shall be carried over Churchill Road by means of a bridge having a clear span of twelve feet and a clear minimum headway throughout of eight feet and in order to obtain such headway the committee may lower the level of the road to an extent not exceeding two feet;

(F) All the works referred to in this sub-section so far as they will be executed upon or otherwise affect or interfere with the roads or property of the corporation shall be executed under their superintendence (if the same be given after reasonable notice from the committee) and to their reasonable satisfaction:

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(7) Upon the completion of the bridge over Caister Road and the removal of the rails at the level crossing in accordance with the foregoing provisions of this section the corporation shall pay to the committee the sum of five thousand pounds:

(8)—(A) The corporation may borrow the said sum of five thousand pounds or any part thereof and in order to secure the repayment thereof and the payment of the interest thereon they may mortgage or charge the district fund and the general district rate of the borough;

(B) The provisions of Part X. of the Great Yarmouth Corporation Act 1897 shall apply to the borrowing of money under this section and to the repayment thereof as if such borrowing had been authorised by that Act and for the purposes of such provisions the prescribed period for the repayment of the money borrowed shall be sixty years from the date or dates of the borrowing thereof;

(C) In lieu of borrowing the whole or any part of the said sum of five thousand pounds the corporation may pay such sum or so much thereof as they shall not borrow out of any purchase or compensation money paid to them by the committee under the provisions of this Act:

(9) If there shall be any difference between the corporation and the committee with respect to this section or to anything to be done or not to be done thereunder the same shall be determined by arbitration under the Arbitration Act 1889 the arbitrator being appointed unless otherwise agreed by the Board of Trade.

30. Notwithstanding anything contained in this Act the Midland and Great Northern Committee shall not stop up or interfere with the roads numbered 12 and 13 on the deposited plans for lands at Cobholm in the borough of Great Yarmouth unless and until they shall have acquired the whole of the land and premises to which that road leads and the said committee shall not stop up or in any way interfere with the footpath numbered 3A and 4 on the said plans.

For the protection of the public rights over road and footpath at Yarmouth.

31. If the Midland and Great Northern Committee (in this section called "the committee") shall under the powers of this Act purchase or acquire any lands in the parishes of Great Yarmouth and Gorleston or either of them adjoining the Breydon Water the following provisions for the protection of the Great Yarmouth Port and Haven Commissioners shall have effect (that is to say):—

For the protection of the Great Yarmouth Port and Haven Commissioners.

(1) Before commencing any works in under or upon any portion of the tidal lands of the Breydon Water (herein-after referred to as "the Breydon Water") the committee shall deliver to

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the engineers of the Great Yarmouth Port and Haven Commissioners (herein-after referred to as "the commissioners") plans and sections in duplicate of the works so proposed to be executed describing the proposed manner of executing the same and such plans sections and descriptions shall be delivered to the engineers of the commissioners for their approval at least twenty-one days before the commencement of any such works :

- (2) If it shall appear to the engineers of the commissioners that the construction of any such works will interfere or otherwise impede or endanger or will be likely to interfere impede or endanger or be injurious to the navigation or tideway of the Breydon Water the commissioners may prohibit the same or may give notice in writing requiring the committee to alter and amend the said plans and sections and the works shall only be constructed in accordance with such plans and sections as may be reasonably approved by the engineers of the commissioners :
- (3) In the event of the said plans sections and descriptions so delivered to the engineers of the commissioners as aforesaid not being objected to within thirty days after the same have been delivered for approval as aforesaid the said works shall be executed in strict accordance therewith and after the said works shall have been constructed in accordance with the said plans sections and descriptions it shall not be lawful for the committee at any time to alter or extend the same without the consent in writing of the commissioners but nothing in this Act shall relieve the committee from or impose upon the commissioners any liability or responsibility for or in connexion with the design or construction of the said works :
- (4) The committee shall at all times maintain and keep any such works in good and sufficient repair and condition to the satisfaction of the commissioners :
- (5) The commissioners may if they think fit employ watchmen or inspectors to watch and inspect the works which may be constructed as aforesaid in over under or upon the said Breydon Water and the reasonable wages of or payments to such watchmen or inspectors shall be borne by the committee and be paid by them to the commissioners :
- (6) It shall be lawful for the commissioners or their engineers workmen and others in their employ at all reasonable times when it may be necessary to enter upon the lands works and premises of the committee at any point or place during the construction of any works to which this section relates in order

to inspect the same and to see that they are being constructed and carried out according to the said plans sections and descriptions : A.D. 1900.

(7) During the construction of any such works the committee shall keep the navigation of the Breydon Water at and near such works free and clear from obstruction :

(8) If by reason of any works executed by the committee in accordance with this section it shall become in the opinion of the commissioners necessary to dredge any portion of the bed of the Breydon Water adjoining or near to the lands to be purchased by the committee the extent of such dredging and the payment by the committee of the whole or any portion of the cost thereof shall be determined in case of difference by arbitration as herein-after provided :

(9) The committee shall in and upon any works to which this section relates provide and at all times maintain proper mooring piles posts rings and warping buoys of such number and description as the commissioners from time to time in their discretion think necessary or convenient for the use of vessels of all descriptions navigating the Breydon Water together with convenient means of access and approach to and from the footpath numbered 3A on the deposited plans of lands at Cobholm :

(10) If any difference shall arise with respect to any matter under this section between the committee and the commissioners or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

32. If the railway is not completed within the period of five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of railway.

33. If the Company fail within the period limited by this Act to complete the railway they shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty shall amount to five per centum on the estimated cost of the railway : Imposing penalty unless railway opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the

A.D. 1900. same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854:

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided:

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control. Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty
in respect of
railway.

34. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who may have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act, and for which injury or loss no compensation or inadequate compensation shall have been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit:

If no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or any part thereof has been abandoned be paid to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid to the Company.

Provisions
as to repair
of roads &c.

35. Subject to the provisions of this Act the new roads and bridle road and footpaths to be made under the authority of the section of this Act of which the marginal note is "Power to make roads and footpaths" shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other roads and footpaths

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of the same nature within the parish in which any such road or footpath will be situate are from time to time liable to be repaired or maintained :

If any question shall arise between the Company and any of such parties as to the due completion of any such road or footpath such question shall from time to time be determined by two justices on the application of either of the parties in difference and after not less than seven days' notice to both parties of the sitting of such justices for the purpose and the certificate of such justices of the due completion of such road or footpath shall be conclusive evidence of the fact so certified.

36. The site and soil of any road street court passage place or footpath or portion thereof by this Act authorised to be stopped up and the fee simple and inheritance thereof (except where by this Act otherwise provided) if the Company are or if and when under the powers of this Act or of any other Act relating to the Company already passed they become the owners of the lands on both sides thereof shall from the time of the stopping up thereof respectively but subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway be wholly and absolutely vested in the Company for the purposes of their undertaking.

As to vesting of site and soil of portions of roads &c. stopped up.

37. Subject to the provisions of this Act all rights of way over and along the portions of highways which may under the provisions of this Act be stopped up and discontinued and over and along any of the lands which may under those provisions be acquired by compulsion shall be and the same are as from the stopping up or discontinuance of the said portions of highways or the purchase or acquisition of the said lands hereby extinguished.

Extinguishment of rights of way &c.

38. The Company shall not stop up any existing road or footpath until they shall have completed to the satisfaction of two justices and opened to the public the road or footpath (if any) to be substituted therefor.

Roads &c. not to be stopped up until substituted work completed.

39. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

40. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or Committee (as the case may be) who are by this Act authorised to acquire any lands any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this

Power to owners to grant easements &c.

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Act in over or affecting lands and the provisions of the said Acts with respect to lands and rentcharges as far as the same are applicable in this behalf shall extend and apply to such grants easements rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain properties.

41. And whereas in the construction of the railway widenings and works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other greater or less portion thereof can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the first part of the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other greater or less portion thereof (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other

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portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

The provisions of this section shall extend and apply to the Midland and North Eastern Committee in respect of the property described or referred to in the second part of the said schedule respectively as if that committee and the second part of the said

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schedule, respectively had been referred to therein instead of the Company and the first part of the said schedule.

Restrictions
on displacing
persons of
labouring
class.

42.—(1) The Company (which expression shall in this section be deemed to include the Midland and North Eastern Committee and the Midland and Great Northern Committee) shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire in any district in the administrative county of London (in this section referred to as "London") twenty or more houses or in any borough or other urban district and elsewhere than in any borough or urban district in any parish ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which such purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(A) Shall have obtained the approval in the case of London of the Secretary of State for the Home Department or in any other case of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the respective fifteenth day of December aforesaid or for such number of persons as the said Secretary of State or the Local Government Board (as the case may be) shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Shall have given security to the satisfaction of the said Secretary of State or the Local Government Board (as the case may be) for the carrying out of the scheme.

(2) The approval of the said Secretary of State or the Local Government Board (as the case may be) to any scheme under this section may be given either absolutely or conditionally and after the said Secretary of State or the Local Government Board (as the case may be) have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the said Secretary of State or the Local Government Board (as the case may be) may dispense with the last-mentioned requirement subject to such conditions (if any) as he or they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the said Secretary of State or the Local Government Board (as the case may be) may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the said Secretary of State or the Local Government Board (as the case may be) out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the said Secretary of State or the Local Government Board (as the case may be) by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands beyond London by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this

A.D. 1900. section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment:

Provided also that the said Secretary of State or the Local Government Board (as the case may be) may at any time dispense with all or any of the requirements of this sub-section subject to such conditions (if any) as he or they may see fit.

(8) All buildings erected or provided by the Company in London for the purpose of any scheme under this section shall be subject to the provisions of the London Building Act 1894 (Local) and any other Act or Acts relating to buildings in the county of London.

(9) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings outside London erected or provided by the Company for the purpose of any scheme under this section.

(10) The said Secretary of State or the Local Government Board (as the case may be) may direct any inquiries to be held which he or they may deem necessary in relation to any scheme under this section or to the carrying out of any such scheme and for giving effect to any of the provisions of this section and may appoint or employ inspectors for the purposes of any such inquiry and the inspectors so appointed or employed shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(11) The Company shall pay to the said Secretary of State any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a reasonable sum to be fixed by the said Secretary of State for the services of such inspector.

(12) The Company shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(13) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme

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approved by the said Secretary of State or the Local Government Board (as the case may be) under any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the said Secretary of State or the Local Government Board (as the case may be) is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the said Secretary of State or the Local Government Board (as the case may be) they might have been sufficient to accommodate.

(14) For the purposes of this section—

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them;

The expression “house” means any tenement separately occupied by any person or persons;

The expression “district” means as regards London the district of a sanitary authority for the purposes of the Public Health (London) Act 1891.

43. The time now limited by the Midland Railway Act 1898 for the compulsory purchase of lands for the purposes of the Dore and Sheffield Widening authorised by the Midland Railway Act 1892 is hereby extended till the first day of July one thousand nine hundred and two so far as regards all lands lying to the east of the Company's railway which the Company were by the said Act of 1892 authorised to acquire for the purposes aforesaid.

Extension of
time for
purchase of
certain lands.

44. The period limited by the Midland Railway Act 1895 for the completion of the Dore and Sheffield Widening authorised by the Midland Railway Act 1892 is hereby extended for a period of three years from the twenty-eighth day of June one thousand nine hundred and sections 21 and 22 of the said Act of 1892 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act:

Extension of
time for
construction
of Dore
and Sheffield
Widening.

If the said widening be not completed within the said period of three years then on the expiration of that period the powers by the said Act granted for making and completing the same or otherwise

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relating thereto shall cease except as to so much thereof as shall then be completed.

Extending
time for sale
of certain
superfluous
lands.

45. The Company may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company with which that Act is incorporated retain and hold any lands belonging to them which have not yet been applied to the purposes of the Company or sold or disposed of by them for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the Company or as the Company may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act :

But the Company shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

Repealing
section 44 of
Yarmouth
Union
Railway
Act 1880.

46. Section 44 (Company not to carry passengers) of the Yarmouth Union Railway Act 1880 shall not apply to so much of the railway constructed under that Act as lies between its junction on the east of North Denes Road with the main line of the Midland and Great Northern Committee from Lynn to Beach Station and its junction on the west side of Caister Road with the line to be constructed by that committee under the Midland and Great Northern Railways Joint Committee Act 1897 and the said portion of railway shall for the purpose of passenger fares be part of the undertaking vested in the Midland and Great Northern Committee by the Midland and Great Northern Railways Joint Committee Act 1893.

Gates at
level crossing
in Great
Yarmouth to
be closed
against
railway.

47. The gates at the level crossing of the Midland and Great Northern Committee at North Denes Road in the borough of Great Yarmouth shall be kept constantly closed across the railway except when engines or carriages passing along the railway shall have occasion to cross the road and the provisions of section 47 of the Railways Clauses Consolidation Act 1845 shall apply to such level crossing as if the Board of Trade had ordered the gates to be closed across the railway in pursuance of that section.

Special
constables.

48. Subject to the conditions herein set forth any two justices having jurisdiction in any one of the counties cities or boroughs in which the constables are to act may on the application of the Company appoint all or so many as they think fit of the persons

recommended to them for that purpose by the Company to act as special constables upon and within the whole of the railways stations and works belonging or leased to or worked by the Company either solely or jointly with any other company, companies, or committee and every or any part thereof respectively and the following provisions shall apply to every appointment so made:—

- (1) Every person so appointed shall make oath or declaration in due form of law before any justice having jurisdiction in any one of the counties, cities or boroughs in which such person is to act duly to execute the office of a constable.
- (2) Every person so appointed and having been sworn or having made such declaration as aforesaid shall during the continuance of his appointment have all the powers, protection and privileges of a constable in respect of the exercise of his duties and may follow and arrest any person who has departed from any of the said railway stations or works after committing therein or thereon any offence for which he might have been arrested while within or upon the said railway stations or works.
- (3) Any two justices assembled and acting together or the Company may dismiss from his office or accept the resignation of any constable so appointed and thereupon all powers, protection and privileges belonging to such person by virtue of such appointment shall wholly cease. No person so dismissed or resigning shall be capable of being re-appointed except with the consent of the authority by whom he was dismissed.
- (4) The local authorities of any county, city or borough shall not be liable for any expense of or be responsible for any acts or defaults of such constables or for anything connected with or consequent upon their appointment and nothing in this Act contained shall restrict or affect the jurisdiction or powers of the respective local authorities of the county, city or borough as the case may be or the police force under their control.
- (5) A constable appointed as aforesaid shall not act as such under the authority of this Act unless he be in uniform or provided with an authority to act as a constable which authority the justice before whom such constable makes oath or declaration as aforesaid is hereby empowered to grant and if the constable be not in uniform he shall show such authority whenever called upon to do so.

49. The Company may with the authority of three fourths of the votes of their shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose subscribe any sums which they may think fit towards the undertaking of the Yorkshire Dales Company not exceeding in the whole

Subscription
to Yorkshire
Dales Rail-
way.

A.D. 1900. five thousand pounds and the Company may with the like authority contribute and apply in or towards payment of their said subscription any moneys which they are already authorised to raise or which they may be authorised to raise by this or any other Act of the present session and which may not be required for the purposes of their undertaking and the Company shall in respect of the sums to be subscribed and the corresponding shares in the Yorkshire Dales Company to be held by them have all the powers rights and privileges (except in regard to voting at general meetings which shall be as herein-after provided) and be subject to all the obligations and liabilities of proprietors of shares in the Yorkshire Dales Company Provided always that the Company shall not sell dispose of or transfer any of the shares in the Yorkshire Dales Company for which they may subscribe.

Votes of
Company at
general
meetings of
Yorkshire
Dales Com-
pany.

50. The Company whilst shareholders of the Yorkshire Dales Company may by writing under their common seal from time to time appoint some person to attend any meeting of the Yorkshire Dales Company and such person shall have all the privileges and powers attaching to a shareholder of the Yorkshire Dales Company at such meetings and may vote thereat in respect of the capital held by the Company.

Company
may lend
money to
Yorkshire
Dales Com-
pany.

51. The Company may by lending money on mortgage or subscribing for or taking debenture stock contribute funds towards the undertaking of the Yorkshire Dales Company to any amount not exceeding the amount which the Yorkshire Dales Company are authorised to borrow or raise by the creation and issue of debenture stock and the Company may raise by the creation and issue of debenture stock such sum as may be necessary for the purposes of this section.

Any debenture stock to be created and issued by the Company under this section shall form part of or shall rank *pari passu* with Midland Railway two and a half per centum debenture stock.

The Company shall not transfer or sell any mortgages or debenture stock of the Yorkshire Dales Company held or acquired by them under the powers of this Act.

Power to
Company
to raise
additional
money by
creation of
stock.

52. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue of new preferred converted ordinary stock and new deferred converted ordinary stock or of Midland Railway two and a half per centum perpetual preference stock such sums of money as they shall think necessary not exceeding one million eight hundred thousand pounds exclusive of the other moneys which they are or may be by any other Act or Acts of Parliament authorised to raise If and so far

as any such moneys are raised by the creation and issue of new preferred and new deferred converted ordinary stock the Company shall raise the same by the creation and issue of the said stocks in equal proportions And any preference stock created under the powers of this section shall be deemed to be part of and shall rank *pari passu* with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing Midland Railway two and a half per centum perpetual preference stock.

A.D. 1900.

53. Except as by or under the powers of this Act otherwise provided all new preferred and new deferred converted ordinary stock issued under the powers of this Act shall in proportion to the amount of stock held by the same person at the same time entitle the respective holders of such new stock to the same dividends and profits and confer on them the like qualifications and the like rights of voting as the like amount paid up on the existing stock of the Company other than and except stock to which any guaranteed or preferential dividend of a fixed amount without further participation in the profits of the Company shall have been assigned.

Qualifications of new stock.

54. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking or raise by the creation and issue of debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 55 of the Midland Railway Act 1894 any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by stock:

Power to borrow.

But no part thereof shall be borrowed until the whole of the capital stock at the time issued shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock has been issued and accepted and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid in reference to such capital has been given which certificate shall be sufficient evidence thereof.

55. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal or principal and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance

Provisions with respect to appointment of a receiver.

A.D. 1900.

of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

56. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and which shall be subsisting at the time of the passing thereof shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages to be granted by virtue of this Act. And nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application of moneys.

57. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act and of any other Act relating to the Company of the present session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable.

Company may apply corporate funds.

58. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Power to other companies and committees to apply funds.

59. The Midland and North Eastern Committee the North Eastern Railway Company the Midland and Great Northern Committee and the Great Northern Company respectively may apply to the purposes of this Act in which they are respectively interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Interest not to be paid on calls paid up.

60. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him. But nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls

actually made as is in conformity with the Companies Clauses Consolidation Act 1845. A.D. 1900.

61. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Deposits for future Bills not to be paid out of capital.

62. Nothing contained in this Act shall authorise the Midland and Great Northern Committee to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the Queen's most Excellent Majesty in right of Her Crown and under the management of the Board of Trade without the previous consent in writing of the Board of Trade on behalf of Her Majesty (which consent the Board of Trade may give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the Queen's Majesty.

Saving rights of the Crown in the fore-shore.

63. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to Her Majesty in right of Her Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by Her Majesty Her heirs or successors in right of Her said duchy.

Saving rights of the Duchy of Lancaster.

64. Nothing in this Act contained shall exempt any of the companies or committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies or committees respectively.

Provisions as to general Railway Acts.

65. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1900.

The SCHEDULE referred to in the foregoing Act.

PART I.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE
TAKEN BY THE COMPANY.

No. on Deposited Plans.	Parish or other Area.	Description of Property.
DEWSBURY GOODS BRANCH.		
16	Urban District of Thornhill	- Land and reservoir.
20	Urban District of Thornhill	- Yard and sheds.
22	Urban District of Thornhill	- Stables.
CHINLEY AND NEW MILLS WIDENING.		
5	Parish of Chinley Bugsworth and Brownside.	Orchard.
5A	Parish of Chinley Bugsworth and Brownside.	Garden.
114	Parish of Chinley Bugsworth and Brownside.	Garden.
115	Parish of Chinley Bugsworth and Brownside.	Field and shed.
4	Urban District of New Mills	- Colliery railway.
5	Urban District of New Mills	- Field spoilbank and colliery tramway.

PART II.

DESCRIBING PROPERTY OF WHICH PART ONLY IS REQUIRED TO BE TAKEN
BY THE MIDLAND AND NORTH EASTERN COMMITTEE.

No. on Deposited Plans.	Parish or other Area.	Description of Property.
ADDITIONAL LANDS AT ILKLEY.		
1	Urban District of Ilkley	- Timber yard.

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